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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

Name: Michael Van Vleet

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General Comment

March 14, 2025

From:
Michael Van Vleet
Digital Product Manager
El Cerrito, CA

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who creates media as part of my day job, and also writes original fiction as a hobby and side business. I consider myself an artist, first and foremost, and have made a point my entire career to credit and pay creative artists for their work.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like mine with their recent demand to create special carve outs in copyright law.

There is no justification for taking the hard work of average Americans and handing it over without recompense to large for-profit companies that could-- and should-- be paying artists if their work is necessary to create and maintain their products.

Nothing about taking copyrighted work and feeding it into an LLM or similar database is "fair use." Perhaps there would be an argument to be made if the end result was free for public consumption. It would still be competing with the business interests of artists, but "fair use" was intended as a carve out for education and the betterment of the public sphere. But these companies hope to profit on the works of the artists they also want to compete with in the market.

Such an effort will stifle innovation and provides profit to those who invested none of the initial effort to create the creative works that fuel the American economy.

Protect American innovation and protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just

Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

Thank you for the opportunity to comment on these important issues.